CASE COVERAGE AND PATIENT PRIVACY POLICY

I. GENERAL POLICY.

This policy covers the compliance requirements applicable to all SI-BONE employees and agents engaged in providing surgical case coverage services to Health Care Professionals in connection with the sale of SI-BONE Products. The term "***Health Care Professional***" or "***HCP***" has the meaning set forth in the SI-BONE *Health Care Professional Interactions Policy*.

II. SPECIFIC POLICIES.

A. Case Coverage Activities.

In connection with delivery of Case Coverage service you shall comply with the following requirements, provided, however, where local law or the policies and procedures for a respective hospital or surgical center facility are more restrictive, such local law or facility's policies and procedures shall take precedent.

1. You may provide technical advice or guidance related to the use, implantation, calibration or adjustment of SI-BONE products consistent with such product's labeling and approved instruction for use. You may further provide advice or assistance where a Health Care Professional, in his/her professional judgement believes it will assist with a patient's treatment, including operation of technical systems at the direction of an attending physician. Such activities are referred to herein collectively as "***Case Coverage***" or "***Covering a Case***".

2. You may not provide medical advice or treatment recommendations, even at the direct request of a Health Care Professional. Any requests for clinical or medical information regarding the use of any SI-BONE product other than in conformity with its published labeling or instructions for use shall be referred to SI-BONE's Chief Medical Officer or Director of Medical Affairs.

3. While Covering a Case, you may not enter the sterile field and you may not use, adjust, modify or manipulate any SI-BONE or third-party product during any procedure that would otherwise be the responsibility of an attending staff member of the facility. However, a field sales representative who has been properly trained in the use of the Medtronic® and StealthStation® terminal and has been authorized by the Chief Commercial Officer to operate a StealthStation computer terminal may do so at the request, and pursuant to the specific direction, of a surgeon performing an iFuse Procedure using iFuse and navigated instruments.

4. While Covering a Case, you may not have any hands-on contact with any patient during a surgery or procedure and you may not provide any medical or health care related service or medical related advice or guidance that would (or could) be construed as the practice of medicine.

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5. While Covering a Case, you are required to be aware of and comply with the policies and procedures of the facility where any Case Coverage may occur.

6. You should not discuss any Case Coverage procedure, discuss any patient or discuss any "protected health care information" ("***PHI***") other than with the attending Health Care Professional within the scope of your Case Coverage services. You are expressly forbidden from collecting or recording any PHI or using any photographic or video equipment or obtaining any images of any patient. Any exception to this provision of this policy shall require the express written authorization of SI-BONE's Compliance Officer.

B. Credentialing.

You are required to maintain any applicable credentialing requirement in connection with authorized access to any health care facility. You shall be required to certify such compliance and that you have obtained and maintained all necessary credentials, approvals and clearances to provide Case Coverage services, including but not limited to the following:

1. Operating room protocol;

2. Safety and blood borne pathogen education; and

3. Certifications with facility specific credentialing services (such as RepTrax) or other certification bodies.

C. Coding & Reimbursement.

You may not provide advice or engage in activities related to medical coding, billing and reimbursement, even if you are requested to provide such information by a Health Care Professional, other than as specifically permitted under the SI-BONE *Reimbursement Assistance Policy*.

Please refer to the SI-BONE *Reimbursement Assistance Policy* for additional information about your obligations related to coding, billing and reimbursement matters.

D. Patient Privacy.

SI-BONE is neither a "covered entity" nor a "business associate" as those terms are defined under the Health Insurance Portability and Accountability Act, the Health Information Technology for Economic and Clinical Health Act and implementing regulations and guidance thereunder (collectively, "***HIPAA***"). As described above, SI-BONE and its employees and agents may receive certain PHI in the course of Covering a Case. However, HIPAA does not permit medical device companies to receive PHI other than in connection with the sale of their devices, adverse event and complaint reporting and in connection with Case Coverage. You should therefore make every effort to avoid unnecessarily receiving PHI or requesting HCPs you may work with to provide PHI to you, unless the patient has executed a valid HIPAA authorization providing for the release of his or her PHI to SI-BONE. The following are important points to keep in mind when interacting with HCPs and discussing their patients:

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1. You should never request that an HCP unnecessarily provide you with PHI unless the subject patient has executed an authorization to provide SI-BONE such information. This includes the data derived from an "ICD 9/10 code pull."

2. You should make every effort to minimize the amount of PHI that you receive. If you accidentally receive PHI, please return or destroy it promptly and notify the entity that provided you the same and Compliance.

III. POLICY VIOLATIONS.

Violations of this Policy, applicable laws, regulations, the SI-BONE Code of Conduct and other SI-BONE policies (even if the intent is to benefit SI-BONE) may result in disciplinary action up to and including termination. If you condone or negligently fail to detect or report violations of this policy by your subordinates may also be subject to disciplinary action up to and including termination.

REVISION HISTORY

Rev	Change Description	Released Date	Author/Approver
A	Initial Release	12/01/2017	Michael Pisetsky
B	Update guidance and replace with reference to Reimbursement Policy.	05/01/2024	Claudia Cibrian (Author) Michael Pisetsky (Approver)

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